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September 17, 2026

BY EDIS

The Honorable Lisa R. Barton
Secretary to the Commission
U.S. International Trade Commission
500 E Street, S.W., Room 112
Washington, DC 20436

Re: *Certain Semiconductor Devices, Products Containing Same, and Components
Thereof, Inv. No. 337-TA-1500*

Dear Secretary Barton:

Pursuant to Order No. 8 issued by Chief Administrative Law Judge Cheney on September 14, 2026, enclosed please find Complainant GlobalFoundries U.S. Inc.'s Amended Complaint.

The exhibits and appendices previously filed with the original Complaint on March 26, 2026 remain unchanged and are incorporated herein by reference.

Respectfully submitted,

/s/ Bert C. Reiser

Bert C. Reiser

*Counsel for Complainant
GlobalFoundries U.S. Inc.*

cc: Service List

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

In the Matter of

**CERTAIN SEMICONDUCTOR DEVICES,
PRODUCTS CONTAINING SAME, AND
COMPONENTS THEREOF**

Investigation No. 337-TA-1500

**AMENDED COMPLAINT OF GLOBALFOUNDRIES U.S. INC., UNDER SECTION 337
OF THE TARIFF ACT OF 1930, AS AMENDED**

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10.	Copies of Assignment Documents for U.S. Patent No. 9,865,546
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13.	GlobalFoundries, “Aerospace, Defense and Critical Infrastructure,” https://gf.com/markets/aerospace-and-defense/
14.	Nov. 20, 2024 GlobalFoundries Press Release, “GlobalFoundries and U.S. Department of Commerce Announce Award Agreement on CHIPS Act Funding for Essential Chip Manufacturing,” https://gf.com/gf-press-release/globalfoundries-and-u-s-department-of-commerce-announce-award-agreement-on-chips-act-funding-for-essential-chip-manufacturing/
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17.	GlobalFoundries Apr. 26, 2021 Press Release, “GLOBALFOUNDRIES Moves Corporate Headquarters to its Most Advanced Semiconductor Manufacturing Facility in New York,” https://gf.com/gf-press-release/globalfoundries-moves-corporate-headquarters-its-most-advanced-semiconductor/
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I. INTRODUCTION

1.1 GlobalFoundries U.S. Inc. (“GlobalFoundries” or “Complainant”) requests that the United States International Trade Commission institute an Investigation pursuant to Section 337 of the Tariff Act of 1930, as amended, 19 U.S.C. § 1337 (“Section 337”), to remedy the unlawful importation, sale for importation, and/or sale after importation of certain semiconductor devices, products containing same, and components thereof by Tower Semiconductor Ltd., (Israel); Tower Partners Semiconductor, Ltd. (Japan); Tower Semiconductor Italy S.R.L. (Italy); Tower US Holdings, Inc.; Tower Semiconductor San Antonio, Inc.; Tower Semiconductor NPB Holdings, Inc.; Tower Semiconductor Newport Beach, Inc., and Newport Fab LLC (collectively “Tower” or “the Proposed Respondents”). Tower’s products infringe certain claims (“the Asserted Claims”) of U.S. Patent Nos. 8,330,235 (“the ’235 Patent”); 8,507,983 (“the ’983 Patent”); 9,093,425 (“the ’425 Patent”); 9,865,546 (“the ’546 Patent”); 10,062,748 (“the ’748 Patent”); and 10,707,167 (“the ’167 Patent”) (collectively, “the Asserted Patents”) as follows:

U.S. Patent No.	Asserted Claims ¹
8,330,235	1 , 5-9, 10 , 11, 12, 15-19
8,507,983	1-7 , 8-12, 13-18 , 19, 20
9,093,425	1-9
9,865,546	1-7 , 8-14
10,062,748	1 , 2-8, 9 , 10, 11 , 12, 14, 16-18
10,707,167	1-6

Pursuant to Commission Rule 212.(a)(9)(i), copies of the Asserted Patents are included as **Exhibits 1-6**². GlobalFoundries holds all rights, title, and interest in and to the Asserted Patents. Pursuant to Commission Rule 212.(a)(9)(ii), copies of the Assignment Records for each of the Asserted Patents are included as **Exhibits 7-12**.

¹ Bolded claim numbers designate independent claims.

² Certified copies of the patents, assignments and prosecution histories at issue have been requested from the USPTO and will be provided to the Commission upon receipt.

1.2 GlobalFoundries is a leading American semiconductor manufacturer, a trusted supplier to the U.S. Department of War³ and a major recipient of federal investment under the CHIPS and Science Act.⁴ GlobalFoundries brings this action against Tower for infringement of GlobalFoundries' U.S. patents relating to its industry-leading RF and power management manufacturing process technologies. For over a decade, Tower has been engaged in a systematic strategy of freeloading, spending very little on capacity expansion (nearly none in the U.S.) and even less on R&D. Instead, it profits by leveraging the patented American innovation of others, like GlobalFoundries, and selling at lower prices into the market. GF brings this lawsuit to put an end to Tower's practices.

1.3 Semiconductor manufacturing today requires some of the most expensive and sophisticated factories on the planet, utilizing highly technical and complex nano-scale process technologies and costly manufacturing tools. Entire global industries, such as healthcare, artificial intelligence, automotive, and defense industries, depend on the availability and technological capability of the semiconductor products these factories and tools produce. This is why semiconductor chips are at the forefront of today's great global technological competition between the United States and China. It is imperative, therefore, for nations and companies to protect innovation in semiconductor process technologies, like the ones that GlobalFoundries invests in and creates, and that Tower has unlawfully used and profited from at GlobalFoundries' expense.

1.4 GlobalFoundries is the most advanced pure-play foundry in the U.S. and Europe

³ **Exhibit 13**, GlobalFoundries, "Aerospace, Defense and Critical Infrastructure," <https://gf.com/markets/aerospace-and-defense/>.

⁴ **Exhibit 14**, Nov. 20, 2024 GlobalFoundries Press Release, "GlobalFoundries and U.S. Department of Commerce Announce Award Agreement on CHIPS Act Funding for Essential Chip Manufacturing," <https://gf.com/gf-press-release/globalfoundries-and-u-s-department-of-commerce-announce-award-agreement-on-chips-act-funding-for-essential-chip-manufacturing/>.

and employs thousands of people in the U.S. and worldwide. While other companies were abandoning semiconductor manufacturing in the U.S., GlobalFoundries bucked this trend by investing billions of dollars on advanced technology and research in the United States. GlobalFoundries originated from the semiconductor manufacturing arm of another leading U.S. semiconductor company, Advanced Micro Devices, in 2009, and expanded globally through acquisition and organic investment. A major \$15 billion U.S. investment in its 300 acre facility known as Fab 8 in Malta, New York, is the leading-edge of GlobalFoundries' significant U.S. investments. GlobalFoundries broke ground for that state of the art facility in 2009 and produces vanguard technology from that location for customers worldwide. Another major U.S. acquisition took place in 2015 when GlobalFoundries acquired IBM's microelectronic facilities and personnel in Burlington, Vermont, a facility that became known as Fab 9. GlobalFoundries acquired not just IBM's facilities and technologists, but also approximately 16,000 IBM patents and applications; decades of experience and expertise in semiconductor development, device expertise, design, and manufacturing; and an expanded manufacturing footprint. The acquisition cemented GlobalFoundries' position as a global leader in world-class semiconductor manufacturing and advanced process technologies.⁵

1.5 GlobalFoundries employs over 4,500 American workers and has invested billions of dollars over decades in domestic semiconductor manufacturing, including advanced radio frequency (RF) and power management platform technologies critical to national security, aerospace, defense, and communications infrastructure. GlobalFoundries' foundational technologies are steeped in IBM and AMD heritage, two storied American companies that, prior

⁵ **Exhibit 15**, GlobalFoundries July 1, 2015 Press Release, "GlobalFoundries Completes Acquisition of IBM Microelectronics Business," <https://gf.com/gf-press-release/globalfoundries-completes-acquisition-ibm-microelectronics-business/>.

to GlobalFoundries also spent billions in R&D on semiconductor manufacturing technology in the United States. Building on this technology foundation, GlobalFoundries invests over \$500 million annually in R&D and technology enablement,⁶ and employs thousands of engineers, to sustain its innovation leadership. GF has invested more than \$15 billion in its Fab 8 facility over the last decade to support innovation and manufacturing capacity. In 2021, the company doubled its planned investment to expand global capacity, with \$500 million targeted for Malta, NY alone.⁷ As a major CHIPS recipient, GlobalFoundries is committed to an additional \$16 billion in investment in its US fabs.⁸ All the while, GlobalFoundries has been creating and patenting hundreds of world class innovations annually to build and secure its technology differentiation leadership and rights.

1.6 In stark contrast to GlobalFoundries, Tower is a foundry business that has chronically underinvested in research and development relative to its U.S. peers. With a base of operations in Israel, and plants in Japan, Europe and the United States, Tower generated a little over \$1.5 billion in 2025,⁹ and forecasts revenue will grow beyond \$2 billion.¹⁰ In 2023, it failed

⁶ **Exhibit 16**, GlobalFoundries Feb. 11, 2026 News Release, “GlobalFoundries Reports Fourth Quarter 2025 and Fiscal Year 2025 Financial Results,” <https://investors.gf.com/news-releases/news-release-details/globalfoundries-reports-fourth-quarter-2025-and-fiscal-year-2025>.

⁷ **Exhibit 17**, GlobalFoundries Apr. 26, 2021 Press Release, “GLOBALFOUNDRIES Moves Corporate Headquarters to its Most Advanced Semiconductor Manufacturing Facility in New York,” <https://gf.com/gf-press-release/globalfoundries-moves-corporate-headquarters-its-most-advanced-semiconductor/>.

⁸ **Exhibit 18**, GlobalFoundries June 4, 2025 Press Release, “GlobalFoundries Announces \$16B U.S. Investment to Reshore Essential Chip Manufacturing and Accelerate AI Growth,” <https://gf.com/gf-press-release/globalfoundries-announces-16b-u-s-investment-to-reshore-essential-chip-manufacturing-and-accelerate-ai-growth/>.

⁹ **Exhibit 19**, Tower Feb. 11, 2026 Press Release, “Tower Semiconductor Reports Record Revenue for the Fourth Quarter of 2025,” <https://towersemi.com/2026/02/11/02112026/>

¹⁰ **Exhibit 20**, Q1 2025 Tower Semiconductor Ltd Earnings Call on May 14, 2025, <https://ir.towersemi.com/static-files/4dbeca76-e387-4bd7-aad0-1daf4607282a> at p. 4.

to merge with Intel and received \$353 million from Intel as a break-up fee,¹¹ spending most of that to fuel its foreign operations where the vast majority of its employees are located. More recently, Tower stated that its partnership with Intel has floundered and that it is in mediation with the U.S. chipmaker.¹² Historically, Tower has been a marginal foundry that struggled at times to survive, priding itself on a lowest-investment model. It has often bought old assets cheaply to avoid meaningful capex investments in its facilities, spending far less than the multiple billions required to compete lawfully. Tower's history of investment in R&D is even more meager. Historic figures show R&D expenses of less than \$90 million annually.¹³ Tower generally files fewer than 15 patent applications annually and holds fewer than 350 granted patents globally.¹⁴

1.7 Rather than investing at levels commensurate with the technological demands of advanced RF integration, Tower profits by offering products that incorporate innovations protected by GF's U.S. patents. Tower undercuts market pricing in the RF and power management segments, capturing share through low pricing strategies made possible by avoiding, via infringement, the cost of the original R&D borne by GlobalFoundries. That strategy should not be permitted to continue to provide rewards going forward.

1.8 GlobalFoundries seeks a limited exclusion order barring from entry into the United States infringing semiconductor devices, products containing same, and components thereof manufactured by or on behalf of, or imported by or on behalf of, Tower. GlobalFoundries also

¹¹ **Exhibit 21**, Intel Aug. 16, 2023 Newsroom Release, "Intel Announces Termination of Tower Semiconductor Acquisition," <https://newsroom.intel.com/corporate/intel-news-aug-2023>

¹² **Exhibit 19**, Tower Feb. 11, 2026 Press Release, "Tower Semiconductor Reports Record Revenue for the Fourth Quarter of 2025," <https://towersemi.com/2026/02/11/02112026/>

¹³ **Exhibit 22**, MacroTrends, "Tower Semiconductor Research and Development Expenses 2012-2025-TSEM," <https://www.macrotrends.net/stocks/charts/TSEM/tower-semiconductor/research-development-expenses>.

¹⁴ **Exhibit 23**, Insights, "Tower Semiconductor Patents - Insights & Stats," <https://insights.greyb.com/tower-semiconductor-patents/>.

seeks cease and desist orders prohibiting the sale for importation, importation, sale after importation, distribution, offer for sale, promotion, marketing, advertising, testing, demonstration, warehousing inventory for distribution, solicitation of sales, programming, repairing, maintenance, use, transfer, and other commercial activity relating to infringing semiconductor devices, products containing same, and components thereof. GlobalFoundries also seeks imposition of a bond during the Presidential Review Period pursuant to 19 U.S.C. § 1337(j).

1.9 As further set forth below, pursuant to Commission Rule 210.12(a)(6)(i), a domestic industry as defined in 19 U.S.C. § 1337(a)(2) and (3) exists in the United States in view of GlobalFoundries' domestic activities relating to the technology of the Asserted Patents and products that practice the Asserted Patents.

II. COMPLAINANT

2.1 Complainant GlobalFoundries U.S. Inc. is a Delaware Corporation with a principal place of business at 400 Stonebreak Road Ext., Malta, NY 12020.

III. PROPOSED RESPONDENTS

3.1 The Proposed Respondents are Tower Semiconductor Ltd., (Israel); Tower Partners Semiconductor, Ltd. (Japan); Tower Semiconductor Italy S.R.L. (Italy); Tower US Holdings, Inc.; Tower Semiconductor San Antonio, Inc.; Tower Semiconductor NPB Holdings, Inc.; Tower Semiconductor Newport Beach, Inc., and Newport Fab LLC (collectively "Tower" or "the Proposed Respondents"). On information and belief, each of the named Tower entities imports into the United States, sells for importation into the United States, and/or sells in the United States after importation certain semiconductor devices, products containing same, and components thereof. Tower's semiconductor devices may be and are used in many products, including, without limitation, evaluation kits, garden tools, automotive products, and mobile devices which are imported into the United States as described below.

IV. THE TECHNOLOGY AND PRODUCTS-AT-ISSUE

4.1 This investigation generally concerns semiconductor devices and/or methods of manufacturing semiconductor devices. Descriptions of the specific technological features and advancements of each of the asserted patents are set forth below in Section V.

4.2 Tower imports, sells for importation, and/or sells within the United States after importation certain semiconductor devices that incorporate these functionalities.

4.3 Pursuant to 19 C.F.R. § 210.12(a)(12), the category of products accused are certain semiconductor devices manufactured using Tower's RF, power management, BCD, logic, SiGe, and BiCMOS processes, including wafers and chips, and components thereof.

4.4 Tower imports, sells for importation, and/or sells within the United States, after importation, semiconductor devices that can be and are incorporated into products including, but not limited to, the Qorvo PAC22140 Evaluation Kit, the Denso DNSRR004 Blind Spot Monitor Sensor, and the Qorvo QM81026 RF Power Tracker.

4.5 The Accused Products directly or indirectly infringe one or more of the Asserted Claims by employing the above functionalities protected by GlobalFoundries' innovations.

V. THE ASSERTED PATENTS AND NON-TECHNICAL DESCRIPTION OF THE INVENTIONS¹⁵

5.1 Pursuant to Commission Rule 210.12(c)(1), copies of the prosecution histories for the Asserted Patents have been submitted with this Complaint as **Appendices A-F**. Pursuant to Commission Rule 210.12(c)(2), copies of the prosecution histories for any priority applications for the Asserted Patents also have been submitted with this Complaint as **Appendices G-H**.

5.2 Pursuant to Commission Rule 210.12(a)(9)(v), a list of each foreign patent, each

¹⁵ All non-technical descriptions of and categorizations of the patents are for the purposes of providing general information only and should not be interpreted as a representation regarding the scope or applicability of any patent, or the requirements or meaning of any patent claims.

foreign or domestic patent application, and each foreign or domestic patent application that has been denied, abandoned or withdrawn, corresponding to each involved U.S. patent, with an indication of the prosecution status of each such patent application is attached as **Exhibit 24**.

5.3 Pursuant to Commission Rule 210.12(a)(9), a list of entities believed to be licensed to the Asserted Patents is attached as **Confidential Exhibit 25**.

A. U.S. Patent No. 8,330,235

1. Identification of the Patent and Ownership by GlobalFoundries

5.4 The United States Patent and Trademark Office, after full and fair examination, duly and legally issued U.S. Patent No. 8,330,235 titled “METHOD TO REDUCE MOL DAMAGE ON NISI” on December 11, 2012. *See Exhibit 1* (’235 Patent). The ’235 Patent issued from Application No. 13/096,511, filed on April 28, 2011. *Id.*

5.5 GlobalFoundries is asserting claims 1, 5-9, 10, 11, 12, and 15-19 of the ’235 Patent in this Investigation. Further investigation and discovery may lead to the assertion of additional claims.

5.6 The Asserted Claims of the ’235 Patent are valid, enforceable, and currently in full force and effect until the expiration of the ’235 Patent on February 5, 2029. GlobalFoundries holds all rights, title, and interest in the ’235 Patent with full rights to enforce the same. **Exhibit 7** (’235 Patent Assignments).

2. Non-Technical Description of the Patent

5.7 The ’235 Patent is generally directed to transistor devices with nickel silicide layers that are formulated to prevent degradation upon removal of overlying stress liners. ’235 Patent at Abstract. Conventional semiconductor devices include a refractory metal (e.g., nickel) deposited over exposed surface features to provide resistance to certain etchants. **Exhibit 1** (’235 Patent) at 1:19-28. Thermal processing (e.g., thermal annealing) causes the refractory metal to react with

the underlying silicon to form electrically conductive silicide layer portions. *Id.* at 1:41-56. Some subsequent etching processes, such as reactive ion etching, can result in degradation of the silicide layer. *Id.* at 2:50-62. Nickel silicide is commonly doped with platinum to improve the material and electrical properties. *Id.* at 7:13-14. However, platinum also increases the resistivity of nickel silicide. The '235 Patent describes techniques for effective shielding of a nickel silicide layer while addressing a problematic increase in resistivity by compositionally grading a platinum-doped nickel silicide layer. *Id.* at 7:19-26. For example, the '235 Patent describes nickel silicide layers have a platinum composition gradient increasing in platinum content toward the upper surfaces thereof, i.e., increasing in platinum in a direction away from the gate electrode and source/drain regions. *Id.* at Abstract.

B. U.S. Patent No. 8,507,983

1. Identification of the Patent and Ownership by GlobalFoundries

5.8 The United States Patent and Trademark Office, after full and fair examination, duly and legally issued U.S. Patent No. 8,507,983 titled “HIGH VOLTAGE DEVICE” on August 13, 2013. *See Exhibit 2* ('983 Patent). The '983 Patent issued from Application No. 13/550571, filed on July 16, 2012. *Id.*

5.9 GlobalFoundries is asserting claims 1-7, 8-12, 13-18, and 19, 20 of the '983 Patent in this Investigation. Further investigation and discovery may lead to the assertion of additional claims.

5.10 The Asserted Claims of the '983 Patent are valid, enforceable, and currently in full force and effect until the expiration of the '983 Patent on February 23, 2029. GlobalFoundries holds all rights, title, and interest in the '983 Patent with full rights to enforce the same. **Exhibit 8** ('983 Patent Assignments).

2. Non-Technical Description of the Patent

5.11 The '983 Patent is generally directed to semiconductor devices that can be used in high-voltage applications, which commonly include lateral double-diffused (LD) transistors. “For high performance LD transistors, low drain-to-source on-resistance ($R_{ds(on)}$) is desired to minimize its power dissipation when it is turned on, as well as high breakdown voltage to maximize its voltage capability.” **Exhibit 2**, '983 Patent at 1:17-21. “To achieve low $R_{ds(on)}$, the channel of the high [voltage] LD transistor should be as short as possible.” *Id.* at 1:21-22.

5.12 The '983 Patent thus describes a high voltage device that has a gate within an active device region, along with a “doped channel well disposed in the substrate adjacent to a first edge of the gate.” *Id.* at 1:45-49. “The first edge of the gate overlaps the channel well with a channel edge of the channel well beneath the gate.” *Id.* at 1:49-51. “The first edge of the gate and channel edge defines an effective channel length of the device,” and the “effective channel length is self-aligned to the gate.” *Id.* at 1:51-53. “With the channel well being self-aligned to the gate edge of the implant, process overlay issues are avoided [and] [v]ery short effective channel lengths with very low R_{ds} can be achieved, enabling high current to pass through a small area.” *Id.* at 6:1-4. The claimed device can also include a “drift isolation region” that is disposed in “a doped drift well adjacent to a second edge of the gate.” *Id.* at 2:9-11. “The drift isolation region [] can improve breakdown voltage of the HV device due to high voltage.” *Id.* at 5:17-19. The device can also have diffusion regions adjacent to the gate, which “serve as, for example, source and drain of the transistor.” *Id.* at 3:55-57.

C. U.S. Patent No. 9,093,425

1. Identification of the Patent and Ownership by GlobalFoundries

5.13 The United States Patent and Trademark Office, after full and fair examination, duly and legally issued U.S. Patent No. 9,093,425 titled “SELF-ALIGNED LINER FORMED ON METAL SEMICONDUCTOR ALLOY CONTACTS” on July 28, 2015. *See Exhibit 3* ('425

Patent). The '425 Patent issued from Application No. 14/177481, filed on February 11, 2014. *Id.*

5.14 GlobalFoundries is asserting claims 1-9 of the '425 Patent in this Investigation. Further investigation and discovery may lead to the assertion of additional claims.

5.15 The Asserted Claims of the '425 Patent are valid, enforceable, and currently in full force and effect until the expiration of the '425 Patent on February 11, 2034. GlobalFoundries holds all rights, title, and interest in the '425 Patent with full rights to enforce the same. **Exhibit 9** ('425 Patent Assignments).

2. Non-Technical Description of the Patent

5.16 The '425 Patent is generally directed to self-aligned liners formed on metal semiconductor alloy contacts. “[M]etal semiconductor alloy containing contacts” can suffer from defects including “(1) [e]ncroachment of the metal semiconductor alloy which typically increases leakage through the source/drain junction” and “(2) [s]potty (non-uniform) metal semiconductor alloys which may cause unwanted etching of the metal semiconductor alloy contact during a subsequently performed etch.” **Exhibit 3**, '425 Patent at 1:47-54. “These two defects are either formed during [or enhanced by] a subsequently performed etching process.” *Id.* at 1:55-57.

5.17 The '425 Patent describes a semiconductor structure where “[m]etal semiconductor alloy contacts are provided on each of a source region and a drain region” and “[a] transition metal is then deposited on each of the metal semiconductor alloy contacts.” '425 patent at 1:62-65. “[T]he deposited transition metal reacts ... with a portion of each of the metal semiconductor alloy contacts forming a transition metal-metal semiconductor alloy liner atop each metal semiconductor alloy contact.” *Id.* at 1:66-2:3. “The transition metal-metal semiconductor alloy liner is more etch resistant as compared to the underlying metal semiconductor alloy contact. As such, the transition metal-metal semiconductor alloy liner can serve as an effective etch stop layer during any subsequently performed etch process.” *Id.* at 2:7-11.

D. U.S. Patent No. 9,865,546

1. Identification of the Patent and Ownership by GlobalFoundries

5.18 The United States Patent and Trademark Office, after full and fair examination, duly and legally issued U.S. Patent No. 9,865,546 titled “CONTACTS TO SEMICONDUCTOR SUBSTRATE AND METHODS OF FORMING SAME” on January 9, 2018. *See Exhibit 4* (’546 Patent). The ’546 Patent issued from Application No. 14/729,298, filed on June 3, 2015. *Id.*

5.19 GlobalFoundries is asserting claims 1-7 and 8-14 of the ’546 Patent in this Investigation. Further investigation and discovery may lead to the assertion of additional claims.

5.20 The Asserted Claims of the ’546 Patent are valid, enforceable, and currently in full force and effect until the expiration of the ’546 Patent on July 3, 2035. GlobalFoundries holds all rights, title, and interest in the ’546 Patent with full rights to enforce the same. **Exhibit 10** (’546 Patent Assignments).

2. Non-Technical Description of the Patent

5.21 The ’546 Patent is generally directed to formation of a contact in a dielectric layer over a semiconductor substrate. **Exhibit 4**, (’546 Patent) at Abstract. More specifically, the ’546 Patent relates to forming an intermix region at an interface of a bottom portion of a contact and an upper portion of a semiconductor substrate. *Id.* at 1:7-13. For example, the ’546 Patent discloses techniques for depositing a first liner layer in a contact opening such that an intermix region is formed at an interface of the bottom portion of the contact opening and an upper portion of the semiconductor substrate (e.g., the source and/or drain). *Id.* at 2:43-49. Unreacted (non-diffused) portions of the first liner layer can then be removed before forming the contact. *Id.* at 2:49-51. Such techniques may, for example, improve contact resistance while avoiding issues caused by increased metal thickness in contact openings. *Id.* at 2:51-54.

E. U.S. Patent No. 10,062,748

1. Identification of the Patent and Ownership by GlobalFoundries

5.22 The United States Patent and Trademark Office, after full and fair examination, duly and legally issued U.S. Patent No. 10,062,748 titled “SEGMENTED GUARD-RING AND CHIP EDGE SEALS” on August 28, 2018. *See Exhibit 5* (’748 Patent). The ’748 Patent issued from Application No. 15/443276, filed on February 27, 2017. *Id.*

5.23 GlobalFoundries is asserting claims 1-12, 14, and 16-18 of the ’748 Patent in this Investigation. Further investigation and discovery may lead to the assertion of additional claims.

5.24 The Asserted Claims of the ’748 Patent are valid, enforceable, and currently in full force and effect until the expiration of the ’748 Patent on February 27, 2037. GlobalFoundries holds all rights, title, and interest in the ’748 Patent with full rights to enforce the same. **Exhibit 11** (’748 Patent Assignments).

2. Non-Technical Description of the Patent

5.25 The ’748 Patent is generally directed to “segmented guard-ring and chip edge seals.” **Exhibit 5**, ’748 Patent at 1:6-8. Guard rings are useful in many technologies, including “low-k dielectric, porous applications” in which the guard ring can help “prevent moisture ingress.” *Id.* at 1:25-28. However, “the use of a segmented guard ring can cause reliability fails in these low-k dielectric, porous applications.” *Id.* at 1:28-31. The ’748 Patent “provides segmented guard-ring and chip edge seals with low-K dielectric material in middle of line (MOL) and/or back end of the line (BEOL) processing.” *Id.* at 2:23-27. These structures can be compatible with the low-K dielectric material which “can be a non-porous or porous polymer, carbon doped oxide, or oxide or combinations thereof.” *Id.* at 3:35-37.

F. U.S. Patent No. 10,707,167

1. Identification of the Patent and Ownership by GlobalFoundries

5.26 The United States Patent and Trademark Office, after full and fair examination, duly and legally issued U.S. Patent No. 10,707,167 titled “CONTACTS TO SEMICONDUCTOR SUBSTRATE AND METHODS OF FORMING SAME” on July 7, 2020. *See Exhibit 6* (’167 Patent). The ’167 Patent issued from Application No. 15/826,939, filed on November 30, 2017. *Id.*

5.27 GlobalFoundries is asserting claims 1-6 of the ’167 Patent in this Investigation. Further investigation and discovery may lead to the assertion of additional claims.

5.28 The Asserted Claims of the ’167 Patent are valid, enforceable, and currently in full force and effect until the expiration of the ’167 Patent on May 30, 2036. GlobalFoundries holds all rights, title, and interest in the ’167 Patent with full rights to enforce the same. **Exhibit 12** (’167 Patent Assignments).

2. Non-Technical Description of the Patent

5.29 The ’167 Patent is generally directed to formation of a contact in a dielectric layer over a semiconductor substrate. **Exhibit 6** (’167 Patent) at Abstract. More specifically, the ’167 Patent relates to forming an intermix region at an interface of a bottom portion of a contact and an upper portion of a semiconductor substrate. *Id.* at 1:9-15. For example, the ’167 Patent discloses techniques for depositing a first liner layer in a contact opening such that an intermix region is formed at an interface of the bottom portion of the contact opening and an upper portion of the semiconductor substrate (e.g., the source and/or drain). *Id.* at 2:46-51. Unreacted (non-diffused) portions of the first liner layer can then be removed before forming the contact. *Id.* at 2:51-53. Such techniques may, for example, improve contact resistance while avoiding issues caused by increased metal thickness in contact openings. *Id.* at 2:53-56.

VI. UNLAWFUL AND UNFAIR ACTS OF RESPONDENTS

6.1 The unlawful and unfair acts of Tower identified below are exemplary and should not be considered in any way limiting.

6.2 GlobalFoundries reserves the right to identify additional infringing products in light of further discovery. GlobalFoundries has not yet had the benefit of discovery, and thus its identification of specific models or types of products below is not intended to limit the scope of the investigation. Any remedy should extend to all infringing products.

A. Infringement of U.S. Patent No. 8,330,235

6.3 On information and belief, Tower imports, sells for importation, and/or sells after importation into the United States, Accused Products that infringe the '235 Patent, literally or under the doctrine of equivalents. The '235 Accused Products include at least devices manufactured using Tower's RF processes RF processes (including its 65nm RF process). For example, the Tower-made Qorvo QM81026 Power Tracker (the "'235 Representative Accused Product") infringes at least claims 1, 5-9, 10, 11, 12, and 15-19 of the '235 Patent. *See Exhibits 26-27.*

6.4 A claim chart comparing the independent claims of the '235 Patent to the '235 Representative Accused Product is attached as **Exhibit 28**.

B. Infringement of U.S. Patent No. 8,507,983

6.5 On information and belief, Tower imports, sells for importation, and/or sells after importation into the United States, Accused Products that infringe the '983 Patent, literally or under the doctrine of equivalents. The '983 Accused Products include at least products manufactured using Tower's BCD processes (including its TS18SOI process). For example, the Tower-made PA22BZdie in the Qorvo PAC22140 Evaluation Kit (the "'983 Representative Accused Product") infringes at least claims 1-7, 8-12, 13-18, 19, and 20 of the '983 Patent. *See*

Exhibits 29-30.

6.6 A claim chart comparing the independent claims of the '983 Patent to the '983 Tower Representative Accused Product is attached as **Exhibit 31**.

C. Infringement of U.S. Patent No. 9,093,425

6.7 On information and belief, Tower imports, sells for importation, and/or sells after importation into the United States, Accused Products that infringe the '425 Patent, literally or under the doctrine of equivalents. The '425 Accused Products include at least products manufactured using Tower's SiGe and BiCMOS processes (including the Tower SBC18 process), as well as its RF processes (including its 65nm RF process). For example, the Tower-manufactured M7DN25PS die in the DENSO DNSRR004 Blind Spot Monitor Sensor and the Tower-made Qorvo QM81026 Power Tracker (the "'425 Representative Accused Products") infringe at least claims 1-9 of the '425 Patent. *See Exhibits 32-33 and Exhibits 26-27.*

6.8 Claim charts comparing the independent claim of the '425 Patent to the Tower '425 Representative Accused Products are attached as **Exhibit 34** and **Exhibit 35**.

D. Infringement of U.S. Patent No. 9,865,546

6.9 On information and belief, Tower imports, sells for importation, and/or sells after importation into the United States, Accused Products that infringe the '546 Patent, literally or under the doctrine of equivalents. The '546 Accused Products include at least products manufactured using Tower's SiGe and BiCMOS processes (including the Tower SBC18 process), as well as its RF processes (including its 65nm RF process). For example, the Tower-manufactured M7DN25PS die in the DENSO DNSRR004 Blind Spot Monitor Sensor and the Tower-made Qorvo QM81026 Power Tracker (the "'546 Representative Accused Products") infringe at least claims 1-14 of the '546 Patent. *See Exhibits 32-33 and Exhibits 26-27.*

6.10 Claim charts comparing the independent claims of the '546 Patent to the Tower '546

Representative Accused Products are attached as **Exhibit 36** and **Exhibit 37**.

E. Infringement of U.S. Patent No. 10,062,748

6.11 On information and belief, Tower imports, sells for importation, and/or sells after importation into the United States, Accused Products that infringe the '748 Patent, literally or under the doctrine of equivalents. The '748 Accused Products include at least products manufactured using Tower's BCD processes (including its TS18SOI process). For example, the Tower-made PA22BZdie in the Qorvo PAC22140 Evaluation Kit (the "'748 Representative Accused Product") infringes at least claims 1-12, 14, and 16-18 of the '748 Patent. *See Exhibits 29-30*.

6.12 A claim chart comparing the independent claims of the '748 Patent to the Tower '748 Representative Accused Product is attached as **Exhibit 38**.

F. Infringement of U.S. Patent No. 10,707,167

6.13 On information and belief, Tower imports, sells for importation, and/or sells after importation into the United States, Accused Products that infringe the '167 Patent, literally or under the doctrine of equivalents. The '167 Accused Products include at least products manufactured using Tower's SiGe and BiCMOS processes (including the Tower SBC18 process), as well as its RF processes (including its 65nm RF process). For example, the Tower-manufactured M7DN25PS die in the DENSO DNSRR004 Blind Spot Monitor Sensor and the Tower-made Qorvo QM81026 Power Tracker (the "'167 Representative Accused Products") infringe at least claims 1-6 of the '167 Patent. *See Exhibits 32-33 and Exhibits 26-27*.

6.14 Claim charts comparing the independent claim of the '167 Patent to the Tower '167 Representative Accused Products are attached as **Exhibit 39** and **Exhibit 40**.

VII. SPECIFIC INSTANCES OF UNFAIR IMPORTATION AND SALE

7.1 On information and belief, Tower is importing, selling for importation, and/or

selling within the United States after importation, certain semiconductor devices, products containing same, and components thereof.

7.2 The specific instances set forth below are representative examples of Tower's unlawful importation, sale for importation, and/or sales within the United States after importation of infringing products.

A. The Qorvo PAC22140 Evaluation Kit

7.3 Qorvo offers a family of products under the name Power Application Controller (PAC).¹⁶ In 2018, semiconductor company Active-Semi announced that it was relying on Tower to manufacture a PAC product referred to as PAC5232.¹⁷ In 2019, Qorvo acquired Active-Semi.¹⁸ Qorvo remains one of Tower's major customers.¹⁹ On information and belief, Tower continues to manufacture Qorvo's PAC family of products.

7.4 The Qorvo PAC22140 chip is part of Qorvo's family of PAC products. **Exhibit 41** at 2. This chip, which includes an infringing PA22BZ die manufactured by Tower, is a component of the Qorvo PAC22140 Evaluation Kit ("Qorvo PAC22140EVK1") that is imported into and sold in the United States. *See Exhibits 29-30. Exhibit 29* is a set of receipts showing the purchase of a Qorvo PAC22140EVK1 in the United States from Mouser Electronics on March 13, 2026. These

¹⁶ **Exhibit 41**, Qorvo Product List at 2-5, <https://www.qorvo.com/products/product-list?categoryID=ca0128>.

¹⁷ **Exhibit 42**, Qorvo March 19, 2018 News Release, "TowerJazz and Active-Semi Announce Ramp to Production of Motor Driver IC on 200V SOI Technology," <https://www.qorvo.com/newsroom/news/2018/towerjazz-and-active-semi-announce-ramp-to-production-of-motor-driver-ic-on-200v-soi-technology>.

¹⁸ **Exhibit 43**, Qorvo Apr. 10, 2019 News Release, "Qorvo to Acquire Active-Semi International," <https://www.qorvo.com/newsroom/news/2019/qorvo-to-acquire-active-semi-international>.

¹⁹ *See, e.g., Exhibit 44*, SiliconValley.com, "A Pillar of Specialty Silicon: A Comprehensive Deep Dive into Tower Semiconductor (TSEM)," <https://markets.financialcontent.com/siliconvalley/article/predictstreet-2025-12-29-a-pillar-of-specialty-silicon-a-comprehensive-deep-dive-into-tower-semiconductor-tsem>.

receipts show that an import tariff was applied to the order, specifically in the amount of \$56.25, confirming that the Qorvo PAC22140EVK1 was imported into the United States. **Exhibit 29.** The purchased product arrived in an Active-Semi box, labeled with the Qorvo PAC22140EVK1 product name. **Exhibit 30** (photographs of the purchased PAC22140EVK1) at 2.

B. The Qorvo QM81026 RF Power Tracker

7.5 The Qorvo QM81026 RF Power Tracker chip (“Qorvo QM81026 RF chip”) is a component of a smartphone, which is assembled in India and is imported into and sold in the United States. *See Exhibits 26-27.* A receipt showing purchase of a smartphone in the United States on February 28, 2026 is attached as **Exhibit 26.** Qorvo is a significant Tower customer. **Exhibit 44.** On information and belief, the Qorvo QM81026 RF chip is manufactured by Tower. For example, the guard ring structures in the accused Qorvo QM81026 RF chip are identical to the guard ring structures found in other RF chips known to be Tower-manufactured, such as the Wisol CL301F1 LNA. *See Confidential Exhibits 45-46.* Therefore, on information and belief, Tower manufactures the Qorvo QM81026 RF chip.

C. The Denso DNSRR004

7.6 In 2017 Tower announced that it used its technology to develop Denso’s rear and side radar sensor.²⁰ The Denso DNSRR004 is a rear and side radar sensor for detecting vehicles in adjacent lanes.²¹ The Denso DNSRR004 is a component of the Toyota Blind Spot Monitor Sensor Module (“Toyota Blind Spot Monitor Sensor”) and includes an infringing Monolithic

²⁰ **Exhibit 47**, Tower Aug. 14, 2017 News Release, “TowerJazz Announces DENSO Corporation utilized its Advanced 0.18um SiGe Technology to Develop a 24GHz Rear and Side Radar Sensor,” <https://ir.towersemi.com/news-releases/news-release-details/towerjazz-announces-denso-corporation-utilized-its-advanced>.

²¹ **Exhibit 48**, Yolegroup, “Denso DNSRR004 Short Range Radar”, <https://medias.yolegroup.com/uploads/2019/12/SP19500-Yole-SYSTEM-Denso-DNSRR004-Blind-Spot-Radar-Flyer.pdf>.

Microwave Integrated Circuit (MMIC) manufactured using SiGe CMOS Technology from Tower. **Exhibit 48** at 1. The Toyota Blind Spot Monitor Sensor is imported into and sold in the United States. *See Exhibits 32-33*. A receipt showing purchase of a Toyota Blind Spot Monitor Sensor in the United States from Jim Coleman Toyota in Maryland on October 13, 2025 is attached as **Exhibit 32**. Photographs of the purchased Toyota Blind Spot Monitor Sensor show that the Denso DNSRR004 is made in Japan. **Exhibit 33** at 1-2. On information and belief, Tower continues to manufacture Denso's products.

VIII. HARMONIZED TARIFF SCHEDULE ITEM NUMBERS

8.1 On information and belief, the Harmonized Tariff Schedule of the United States item number under which the infringing semiconductor devices may be imported into the United States may be at least 8541.59.0040 (unmounted chips, dice and wafers). This classification are intended for illustration only and are not intended to be restrictive of the accused products or of products subject to the relief requested.

IX. THE DOMESTIC INDUSTRY

9.1 In accordance with Section 337(a)(2) and (a)(3), a domestic industry exists in the United States in connection with the Asserted Patents by virtue of the activities within the United States of GlobalFoundries, including manufacture, assembly, research, product development, and application engineering, sales and marketing. GlobalFoundries' significant investment in plant and equipment, and significant employment of labor and/or capital in the United States with respect to the Domestic Industry Products is described in greater detail below. The Asserted Patents are practiced by at least the following Domestic Industry Products:

U.S. Patent No.	Domestic Industry Products / Processes
8,330,235	Products manufactured using GlobalFoundries' 130CBIC process
8,507,983	Products manufactured using GlobalFoundries' CMHV7SF process
9,093,425	Products manufactured using GlobalFoundries' 130CBIC process
9,865,546	GlobalFoundries' 130CBIC process

U.S. Patent No.	Domestic Industry Products / Processes
10,707,167	Products manufactured using GlobalFoundries' 130CBIC process
10,062,748	Products manufactured using GlobalFoundries' CSOI8SW process

A. The Economic Prong of the Domestic Industry Requirement Is Satisfied

9.2 A domestic industry under subparts (A) and (B) of Section 337(a)(3) exists by virtue of GlobalFoundries' activities within the United States, including manufacture, research, product development, applications engineering, sales, and marketing.

9.3 GlobalFoundries has been manufacturing products in the United States since 2012, and it owns or leases numerous domestic facilities in the United States. GlobalFoundries' United States facilities locations include Austin, Texas (design center); Burlington, Vermont (manufacturing center); Dallas, Texas (design and engineering center); Malta, New York (manufacturing center); Raleigh, North Carolina (design center); and Santa Clara, California (design center and customer support). The Domestic Industry Products in this Investigation are manufactured at GlobalFoundries' Burlington, and Singapore facilities, and they are supported by research, product development, applications engineering, sales, and marketing activities undertaken throughout GlobalFoundries' United States facilities. GlobalFoundries' (i) quantitatively and qualitatively significant investment plant and equipment, and (ii) quantitatively and qualitatively significant employment of labor or capital with respect to the Domestic Industry Products is described in greater detail in **Confidential Exhibit 49**.

B. The Technical Prong of the Domestic Industry Requirement Is Satisfied

9.4 In accordance with Section 337(a)(2) and (a)(3), a domestic industry exists in the United States in connection with the Asserted Patents.

9.5 Claim charts and explanatory information for products and processes that currently practice at least one exemplary valid claim of the Asserted Patents accompany this Complaint as

Confidential Exhibits 50-55.²²

9.6 GlobalFoundries reserves its right to update its list of domestic industry products, including in light of additional discovery.

9.7 **Confidential Exhibit 50** includes a claim chart that shows how the '235 Patent Domestic Industry Products practice at least claim 1 of the '235 Patent.

9.8 **Confidential Exhibit 51** includes a claim chart that shows how the '983 Patent Domestic Industry Products practice at least claim 1 of the '983 Patent.

9.9 **Confidential Exhibit 52** includes a claim chart that shows how the '425 Patent Domestic Industry Products practice at least claim 1 of the '425 Patent.

9.10 **Confidential Exhibit 53** includes a claim chart that shows how the '546 Patent Domestic Industry Process practices at least claim 1 of the '546 Patent.

9.11 **Confidential Exhibit 54** includes a claim chart that shows how the '748 Patent Domestic Industry Products practice at least claim 1 of the '748 Patent.

9.12 **Confidential Exhibit 55** includes a claim chart that shows how the '167 Patent Domestic Industry Products practice at least claim 1 of the '167 Patent.

X. RELATED LITIGATION

10.1 The Asserted Patents are the subject of a civil action being concurrently filed in the U.S. District Court for the Western District of Texas.

10.2 Pursuant to Commission Rule 210.12(a)(5), GlobalFoundries states that, other than the litigation specified above, to GlobalFoundries' knowledge, the alleged unfair methods of competition and unfair acts, or the subject matter thereof, are not, and have not been, the subject of any court or agency litigation, or of any arbitration.

²² GlobalFoundries reserves its right to rely on additional claims of the Asserted Patents to support the technical prong of its domestic industry.

XI. RELIEF REQUESTED

11.1 WHEREFORE, by reason of the foregoing, GlobalFoundries respectfully requests that the U.S. International Trade Commission:

11.2 Institute an immediate investigation pursuant to Section 337 of the Tariff Act of 1930, as amended, 19 U.S.C. § 1337(a)(1)(B)(i) and (b)(1) with respect to violations of Section 337 based upon the importation, sale for importation, and sale after importation into the United States by the Proposed Respondents of certain semiconductor devices, products containing same, and components thereof, that infringe one or more of the asserted claims of U.S. Patent Nos. 8,330,235; 8,507,983; 9,093,425; 9,865,546; 10,062,748; and 10,707,167.

11.3 Find a violation of Section 337 based on said unlawful acts;

11.4 Issue a permanent limited exclusion order under 19 U.S.C. § 1337(d)(1) barring from entry into the United States infringing certain semiconductor devices, products containing same, and components thereof manufactured by or on behalf of, or imported by or on behalf of, Tower or its affiliates;

11.5 Issue permanent cease and desist orders, under 19 U.S.C. § 1337(f), directing the Tower Respondents to cease and desist from the sale for importation, importation, sale after importation, distribution, offering for sale, promoting, marketing, advertising, testing, demonstrating, warehousing inventory for distribution, solicitation of sales, programming, repairing, maintaining, using, transferring, and other commercial activity relating to infringing certain semiconductor devices, products containing same, and components thereof;

11.6 Impose a bond upon the Proposed Respondents who continue to import infringing articles, including certain semiconductor devices, products containing same, and components thereof, during the 60-day Presidential review period pursuant to 19 U.S.C. § 1337(j); and

11.7 Grant such other and further relief as the Commission deems just and proper based

on the facts determined by the investigation and the authority of the Commission.

Dated: September 17, 2026

Respectfully submitted,

/s/ Bert C. Reiser

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*Counsel for Complainant
GlobalFoundries U.S. Inc*

VERIFICATION

I, David Cain, declare in accordance with 19 C.F.R. §§ 210.4 and 210.12(a), under penalty of perjury, that the following statements are true:

1. I am a Senior Director and Counsel of GlobalFoundries U.S. Inc., and I am duly authorized to verify this Complaint under Section 337 of the Tariff Act of 1930, as Amended (“Complaint”);

2. I have read the Complaint and am aware of its contents;

3. To the best of my knowledge, information, and belief, formed after an inquiry reasonable under the circumstances, (a) the claims and other legal contentions in the Complaint are warranted by existing law or by a non-frivolous argument for the extension, modification, or reversal of existing law or the establishment of new law, and (b) the allegations and other factual contentions in the Complaint have evidentiary support or, if specifically so identified, are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery; and

4. The Complaint is not being presented for any improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of the Investigation or related proceedings.

I declare under penalty of perjury under the laws of the United States that the foregoing is true and correct. Executed on September 17, 2026 in Essex Junction, Vermont.



David Cain
Senior Director and Counsel
GlobalFoundries U.S. Inc.

CERTIFICATE OF SERVICE

It is hereby certified that copies of the foregoing **AMENDED COMPLAINT OF GLOBALFOUNDRIES U.S. INC., UNDER SECTION 337 OF THE TARIFF ACT OF 1930, AS AMENDED** were served on September 17, 2026 as follows:

The Honorable Lisa R. Barton Secretary to the Commission U.S. International Trade Commission 500 E Street, SW, Room 112 Washington, DC 20436	BY EDIS
The Honorable Clark S. Cheney Chief Administrative Law Judge U.S. International Trade Commission 500 E Street, SW, Room 317 Washington, DC 20436	By Email and Box: Cheney1500@usitc.gov
Stephen R. Smith COOLEY LLP 1299 Pennsylvania Ave., N.W. Suite 700 Washington, D.C. 20004 <i>Counsel for Respondents Tower Semiconductor Ltd., Tower Partners Semiconductor, Ltd., Tower Semiconductor Italy S.r.l., Tower US Holdings, Inc., Tower Semiconductor San Antonio, Inc., Tower Semiconductor NPB Holdings, Inc., Tower Semiconductor Newport Beach, Inc., and Newport Fab LLC</i>	By Email: TowerITC@cooley.com

/s/ Erika J. Weinstein

Erika J. Weinstein

CLEARY GOTTlieb STEEN & HAMILTON LLP